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|   | <b>Feuer v. City of Newport Beach</b>                      | <b>3) Case Management Conference</b><br><br><b>The Court Will Hear Argument</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 5 | <b>2023-01299440</b><br><br><b>Hulsey v. Trofimenko MD</b> | <b>1) Motion to Compel Deposition (Oral or Written)</b><br><br><b>2) Motion to Compel Production</b><br><br><b>3) Motion to Quash Subpoena</b><br><br><b>4) Motion to Quash Subpoena</b><br><br><br><b>NO TENTATIVE WILL ISSUE</b><br><b>THE COURT WILL HEAR ARGUMENT</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 7 | <b>2021-01225368</b><br><br><b>Koustik v. Christiansen</b> | <b>1) Motion to Compel Further Responses to Form Interrogatories</b><br><br><b>2) Motion to Compel Further Responses to Form Interrogatories</b><br><br><b>3) Motion to Compel Further Responses to Form Interrogatories</b><br><br>Defendant Holly Christiansen’s motions to compel further responses to her form interrogatories, set three, from Plaintiffs/Cross-Defendants Peggy Koustik, Harry Koustik and Bethlehem No Fault Services, Inc. are denied.<br><br>Defendant Court previously heard substantively identical motions on 11/18/24. The Court denies the prior motions because the separate statements did not comply with CRC, Rule 3.1345(c), which requires Defendant to provide to the court “all the information necessary to understand each discovery request and all the responses to it that are at issue... so that no person is required to review any other document in order to determine the full request and the full response.” (ROA 286). Subd. (c)(4) states that the separate statement shall include, “[i]f necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it,” and (c)(5) states that “[i]f the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth.” (ROA 286). |

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|    |                                                                                           | <p>The amended motions suffer from the same procedural defects.</p> <p>The Motions are denied.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 9  | <p><b>24-01408949</b></p> <p><b>Mehta v. Ford Motor Company</b></p>                       | <p><b>1) Demurrer to Complaint</b></p> <p><b>2) Case Management Conference</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 10 | <p><b>2023-01324999</b></p> <p><b>Simply Crystal Clean, LLC v. Ital Pizza II, LLC</b></p> | <p><b>Motion for Summary Judgment and/or Adjudication</b></p> <p>Defendants Ital Pizza II, LLC, dba Bottega Angelina, Ital Pizza, Inc., dba Angelina's Pizzeria Napoletana, Spectrum Restaurant Management Group, LLC, Philip Fusco, aka Filippo Fusco, and Shokoufeh Fusco, aka Shokoufeh Amiri (collectively, "Defendants") seek summary adjudication on the three causes of action alleged in the First Amended Complaint ("FAC") filed by Plaintiffs Simply Crystal Clean, LLC and Bitu Safari ("Safari") (collectively, "Plaintiffs").</p> <p>As an initial matter, Defendants' proof of service for their moving papers and reply did not include the server's email address. (Code Civ. Proc., 1013b, subd. (b)(1).) Plaintiffs served and filed an opposition without objecting to service. Subject to any objections regarding service of Defendants' reply, Defendants' motion for summary adjudication is granted.</p> <p>The Court also notes Defendants' notice of motion seeks summary adjudication on only the third cause of action, but also appears to seek summary adjudication on all three causes of action – the first two causes of action as alleged by Safari and the third cause of action by Plaintiffs. Defendants briefed all three causes of action in the moving papers and Defendants' separate statement repeats the three issues verbatim. Plaintiffs oppose the motion as to all three issues without objecting to service. Accordingly, the Court considers Defendants' motion as to all three issues set forth in the notice of motion and separate statement.</p> <p>Defendants' unopposed request for the Court to take judicial notice of bill analysis is granted. (<i>A.D. Improvements, Inc. v. Department of Transportation</i> (2024) 105 Cal.App.5th 1166; see, <i>St. John's Well Child &amp; Family Center v. Schwarzenegger</i> (2010) 50 Cal.4th 960, 967.)</p> |